

TERMS OF SERVICE AGREEMENT BETWEEN SUMMIT INDUSTRIES CORP. AND PRIME CONSULTING PVT. LTD.

Between: **Summit Industries Corp.** (Provider) and **Prime Consulting Pvt. Ltd.** (User)

Effective Date: 2024-10-21

Termination Date: 2027-10-21

Governing Law: the laws of India

1. Term

This Agreement shall commence on the Effective Date, 2024-10-21, and shall continue until 2027-10-21, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

2. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Summit Industries Corp. shall process personal data of Prime Consulting Pvt. Ltd.'s employees or customers only as necessary to perform the Services and strictly in accordance with Prime Consulting Pvt. Ltd.'s written instructions. Summit Industries Corp. shall implement appropriate technical and organisational measures to protect such data.

3. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

4. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

5. Intellectual Property

All intellectual property rights in deliverables created specifically for Prime Consulting Pvt. Ltd. under this Agreement shall vest in Prime Consulting Pvt. Ltd. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Summit Industries Corp. grants Prime Consulting Pvt. Ltd. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Prime Consulting Pvt. Ltd.'s internal business purposes.

6. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

7. Audit Rights

Prime Consulting Pvt. Ltd. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Summit Industries Corp.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Summit Industries Corp.'s operations. The cost of the audit shall be borne by Prime Consulting Pvt. Ltd., unless the audit reveals an overcharge of more than five percent (5%), in which case Summit Industries Corp. shall bear the cost.

8. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

9. Indemnification

Summit Industries Corp. shall indemnify, defend, and hold harmless Prime Consulting Pvt. Ltd. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Summit Industries Corp.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

10. Subcontracting

Summit Industries Corp. shall not subcontract any material part of the Services without the prior written consent of Prime Consulting Pvt. Ltd.. Where subcontracting is permitted, Summit Industries Corp. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 2 and Clause 1.

11. Termination

Either Party may terminate this Agreement by giving 60 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Prime Consulting Pvt. Ltd. shall pay for all Services rendered up to the date of termination.

12. Payment Terms

Prime Consulting Pvt. Ltd. shall pay Summit Industries Corp. a fee of Rs. 1,02,00,000 (Rupees One crore, two lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Prime Consulting Pvt. Ltd.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

13. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this terms of service Agreement dated 2024-10-21 between Summit Industries Corp. and Prime Consulting Pvt. Ltd.. "Services" means the services described in Clause 5. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

14. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

15. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

16. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Chennai. The award shall be final and binding.

17. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

IN WITNESS WHEREOF

Provider

Summit Industries Corp.

Signature: _____

Name: _____

Title: _____

Date: _____

User

Prime Consulting Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____